G L O B A L T E E N S M O D E L U N I T E D N A T I O N S 2 0 2 6

UN General Assembly
UNGA

Deliberating the Stagnation of Decolonization in Non-Self-Governing Territories, with Special Emphasis on Strategic Archipelagos, Resource Control, and the Legitimacy of Administrative Powers.

B A C K G R O U N D G U I D E

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RESEARCH ARCHITECTURE

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This dossier provides the authoritative factual, legal, and strategic foundation for debate in the United Nations General Assembly at GTMUN '26. Delegates are expected to master both the customary international law governing the 17 remaining Non-Self-Governing Territories (NSGTs) and the geostrategic tensions stalling their self-determination.

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Figure 1: *The United Nations Dag Hammarskjöld Library treaty depository, housing verified General Assembly archives and C-24 regional seminar dossiers.*

DELEGATE DIRECTIVE:
Prepare interventions referencing verified UN documents rather than non-governmental commentaries.

PART I: INSTITUTIONAL MANDATE

Introduction to the United Nations General Assembly

1.1 Background and Standing of the General Assembly

Article 7 of the Charter of the United Nations established six principal organs to address matters of global peace, security, and human rights. Among these, the General Assembly occupies an exceptional position: it is the only organ in which all **193 Member States enjoy equal representation** under the inviolable principle of *one nation, one vote* (Article 18(1)).

While the Security Council possesses binding coercive authority under Chapter VII for threats to international peace, the General Assembly functions as the world's supreme deliberative, policymaking, and representative body. Operating through its six Main Committees—specifically the Special Political and Decolonization Committee (Fourth Committee / SPECPOL)—the Assembly exercises unique moral, diplomatic, and norm-generating authority over territories that have not yet achieved self-government.

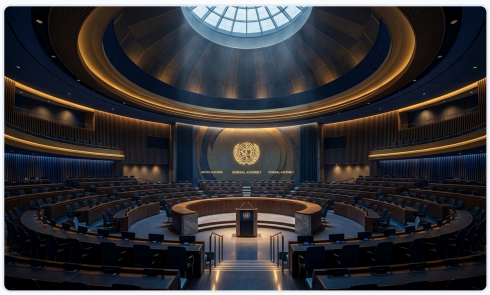


Figure 2: *The UN General Assembly Plenary Hall during debate, where universal membership guarantees equal standing regardless of military or economic scale.*

1.2 Powers and Functions under the UN Charter

Charter Articles 10 to 14 endow the General Assembly with broad competencies:

- **Broad Deliberation (Article 10):** The Assembly may discuss any questions or matters within the scope of the Charter or relating to the powers and functions of any organs provided for in the present Charter.
- **International Law & Rights (Article 13):** Initiating studies and making recommendations to promote international cooperation and progressive codification of international law.
- **Decolonization Oversight (Chapter XI):** Monitoring the administration of Non-Self-Governing Territories and reviewing information transmitted under Article 73(e).
- **Budgetary Control (Article 17):** Approving the regular budget of the UN and assessing member state contributions.

PART I: PROCEDURAL RIGOUR

Legal Weight of Resolutions & Rules of Evidence

1.3 Legal Weight and Authority of Resolutions

Under Articles 10 and 14 of the UN Charter, resolutions adopted by the General Assembly are formally characterized as **recommendations**. Unlike decisions of the Security Council under Chapter VII, they do not possess direct coercive legal enforceability. However, delegates must not mistake recommendations for absence of legal weight.

Customary International Law & Opinio Juris: Repeated General Assembly resolutions adopted by overwhelming majorities provide authoritative evidence of *opinio juris* and general state practice. Landmark declarations—such as **Resolution 1514 (XV) (1960)**—have solidified the Right to Self-Determination into a **peremptory norm of general international law (jus cogens)**, from which no derogation is permitted.



Figure 3: *International legal depositories where historic General Assembly resolutions are codified as customary international law.*

1.4 Standard of Rigour: Hierarchy of Admissible Sources

Source Category	Admissibility	Evidentiary Value & Application in Committee
Primary UN Documents	**Absolute**	UN Charter, General Assembly Resolutions, C-24 reports, and ICJ Advisory Opinions form irrefutable proof.
Bilateral Treaties	**High**	Formal treaties (e.g., Treaty of Utrecht 1713, Nouméa Accord 1998) registered under UN Charter Article 102.
State Policy Whitepapers	**Admissible as Position**	Demonstrates national policy stance; cannot contradict established treaty obligations or jus cogens norms.
Independent Media & NGOs	**Secondary Only**	Corroborating evidence only; cannot serve as primary basis for legal assertions or territorial sovereignty claims.

PART II: THE STAGNATION DILEMMA

Introduction to the Agenda: The Stagnation Dilemma

2.1 The Scope of the Problem

In 1945, Chapter XI of the UN Charter established the international trusteeship and non-self-governing territory framework, encompassing over **750 million people**—nearly a third of the world's population—living under colonial administration. Over the subsequent six decades, profound waves of decolonization dismantled formal overseas empires across Asia, Africa, and the Caribbean, creating more than 80 sovereign nation-states.

Today, that momentum has collapsed into structural inertia. An estimated **1.6 to 2 million people** remain across **17 officially designated Non-Self-Governing Territories**. These territories are predominantly small island archipelagos in the Pacific, Atlantic, and Caribbean, alongside the continental territory of Western Sahara.



Figure 4: *Geographic distribution of the 17 remaining Non-Self-Governing Territories, highlighting their isolation and maritime expanse.*

2.2 Historical Waves vs. The 30-Year Deadlock

Wave 1: The Great Liberation (1945–1980)

Decolonization was driven by massive demographic scale, geopolitical anti-colonial alliances, and clear territorial boundaries across Africa and Asia. Over 80 sovereign nations gained independence and joined the UN.

Wave 2: The Archipelagic Trap (1990–Present)

The remaining 17 territories possess small land areas but vast Exclusive Economic Zones (EEZs), military installations, or complex economic integration, leading to 30+ years of zero de-listings.

PART II: TERRITORIAL MATRIX

The 17 Non-Self-Governing Territories

2.3 Historic Foundations: Resolutions 1514 & 1541 (XV)

In 1960, the General Assembly adopted **Resolution 1514 (XV)**, affirming that *"all peoples have an inalienable right to complete freedom, the exercise of their sovereignty and the integrity of their national territory."*

This was supplemented by **Resolution 1541 (XV)**, defining the **three legitimate outcomes** of self-determination: **(1) Sovereign Independence, (2) Free Association with an independent State, or (3) Full Integration** on equal terms.



Figure 5: *Historical declaration instruments codifying Resolution 1514 (XV)—the Magna Carta of Decolonization.*

Official Roster of the 17 Territories Monitored by the C-24

Territory	Administering Power	Region	Core Structural Dilemma
Western Sahara	Spain (de jure) / Admin. Pending	Africa	Military dispute, ceasefire monitoring, MINURSO mandate.
New Caledonia	France	Pacific	Three referenda under Nouméa Accord; indigenous boycott.
French Polynesia	France	Pacific	Re-inscribed in 2013; disputes over nuclear legacy and autonomy.
Guam	United States	Pacific	Major military base installations; native Chamorro voting rights.
Falkland Islands (Malvinas)	United Kingdom	South Atlantic	Bilateral sovereignty dispute with Argentina; 2013 referendum.
Gibraltar	United Kingdom	Europe	Bilateral dispute with Spain; Post-Brexit border & airport controls.
Bermuda	United Kingdom	Atlantic	Offshore financial center; economic dependency vs autonomy.
Cayman Islands, BVI, Turks	United Kingdom	Caribbean	Fiscal lifelines, disaster exposure, high GDP per capita without sovereignty.

PART III: INDIGENOUS SOVEREIGNTY

Human Rights & Indigenous Identity in NSGTs

3.1 Cultural Preservation and Land Dispossession

In many NSGTs, prolonged colonial administration has inflicted profound damage on indigenous cultural heritage, language revitalization, and traditional land tenure. In Pacific territories like **New Caledonia (Kanak people)** and **Guam (Chamorro people)**, colonial land confiscation and demographic settlement have reduced native populations to minorities in their ancestral homelands.

Under the **UN Declaration on the Rights of Indigenous Peoples (UNDRIP, Article 3)**, indigenous populations possess the right to self-determination, through which they freely determine their political status and freely pursue their economic, social, and cultural development.



Figure 6: *Pacific territorial representatives presenting petitions on indigenous rights and heritage preservation at the UN.*

3.2 Political Disenfranchisement & Second-Class Citizenship

Delegates must evaluate systemic civil disenfranchisement in NSGTs:

- **Unincorporated Status:** In US territories (Guam, American Samoa, US Virgin Islands), residents are US citizens or nationals but cannot vote for the US President and lack voting representation in Congress.
- **Judicial Inequality (The Insular Cases):** Century-old judicial doctrines permit administering powers to extend only fundamental constitutional protections to territorial inhabitants.
- **Military Land Use:** Over 25% of Guam's land area is occupied by military installations, restricting indigenous agricultural and residential development.

PART IV: INSTITUTIONAL OVERSIGHT

The Special Committee on Decolonization (C-24)

4.1 Mandate and Structure of the C-24

Established in 1961 under General Assembly Resolution 1654 (XVI), the **Special Committee on Decolonization (C-24)** serves as the Assembly's primary subsidiary organ mandated to monitor the implementation of Resolution 1514 (XV). Comprising 29 Member States, the Committee examines political, economic, and social developments in each NSGT.

The C-24 submits annual recommendations to the **Fourth Committee (SPECPOL)**, which prepares draft resolutions for plenary adoption by the General Assembly. In addition, the C-24 conducts annual regional seminars in the Caribbean and Pacific to hear petitions directly from territorial representatives.



Figure 7: *Formal session of the Special Committee on Decolonization (C-24) convening to review territorial reports and petitions.*

4.2 Visiting Missions & Administrative Resistance

The Visiting Mission Impasse: Article 73(e) requires administering powers to transmit technical information on economic and educational conditions. However, administering powers routinely refuse to permit C-24 visiting missions, citing national sovereignty or claiming territories are self-governing internal entities. Without on-site verification, the UN is deprived of independent empirical data.

PART IV: FOURTH DECADE (2021-2030)

The Decolonization Decades & Structural Obstacles

4.3 The Fourth International Decade (2021–2030)

The General Assembly declared 2021–2030 as the **Fourth International Decade for the Eradication of Colonialism** (Res 75/123). Despite three preceding decades with identical mandates, not a single territory has been de-listed since Timor-Leste achieved independence in 2002.

This persistent failure highlights a profound disconnect between General Assembly political rhetoric and real-world compliance mechanisms. The General Assembly lacks subpoena or enforcement powers against administering States that boycott C-24 deliberations.



Figure 8: *Official diplomatic portfolios and Article 73(e) annual administrative dossiers submitted to SPECPOL.*

4.4 The Two-Tier System: Strategic vs Non-Strategic Territories

Administering powers apply a de facto two-tier geopolitical calculus:

- **Tier 1 (Strategic Assets):** Territories housing military bases, radar arrays, or sovereign archipelagic waters (Guam, Diego Garcia, New Caledonia, Gibraltar) are fiercely protected against de-listing or independence.
- **Tier 2 (Fiscal Burdens):** Small island territories requiring financial subsidies are encouraged toward internal self-government while maintaining metropolitan financial dependencies.

PART V: GEOSTRATEGIC REALITIES

Reasons for Stalled Decolonization: Forward Bases

5.1 Military Enclaves & Power Projection

The single greatest structural impediment to decolonization in the 21st century is **military utility**. Administering powers maintain sovereign control over remote archipelagos to secure forward military bases, early-warning radar arrays, satellite tracking facilities, and naval refueling hubs.

In **Guam**, Naval Base Guam and Andersen Air Force Base serve as the primary forward hub for US Indo-Pacific command. In **Gibraltar**, deep-water naval facilities control maritime access between the Atlantic Ocean and the Mediterranean Sea.



Figure 9: *Strategic deep-water maritime installations and radar stations situated within archipelagic Non-Self-Governing Territories.*

5.2 The Security Dilemma vs. Decolonization Mandates

Strategic Irreplaceability: In an era of escalating great-power maritime rivalry across the Indo-Pacific and South Atlantic, administering powers view territorial withdrawal as creating unacceptable security vacuums. Consequently, military strategic imperatives continually supersede General Assembly decolonization mandates.

PART V: MARITIME CHOKEPOINTS

Strategic Archipelagos & Maritime Choke Points

5.3 Exclusive Economic Zones (EEZ) & Subsea Corridors

Under the **UN Convention on the Law of the Sea (UNCLOS, 1982)**, sovereign control over small, isolated islands generates massive **200-nautical-mile Exclusive Economic Zones (EEZs)**. Through its overseas territories, France commands the second-largest maritime EEZ on Earth (over 11 million sq km), with French Polynesia and New Caledonia accounting for the vast majority.

These waters control crucial subsea fiber-optic telecommunication cables, unexploited deep-sea critical mineral deposits (nickel, cobalt, polymetallic nodules), and commercial maritime navigation choke points.

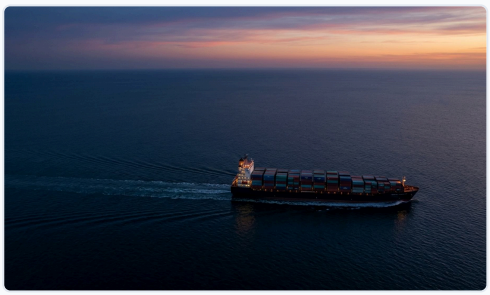


Figure 10: *Commercial shipping corridors and subsea communications cables traversing territorial archipelagic waters.*

5.4 Demographic Engineering & Voter Registration Disputes

Demographic dilution fundamentally complicates genuine plebiscites:

- **In New Caledonia:** Decades of metropolitan migration led to fierce disputes between pro-independence indigenous Kanaks and loyalist European settlers over who qualifies to vote on the special restricted electoral roll.
- **In the Falkland Islands (Malvinas):** Argentina contends that the existing population constitutes an implanted settler demographic, nullifying the applicability of RTSD in favor of territorial integrity.

PART VI: SOVEREIGNTY DISPUTES

Disputes Over Control, Authority & Status of NSGTs

6.1 Territorial Integrity vs. Self-Determination

A central legal collision in the General Assembly arises between **the Right to Self-Determination (Article 1(2))** and **the Principle of Territorial Integrity (Article 2(4))**. Administering powers argue that the democratic wishes of current inhabitants are paramount. Claiming States argue that colonial occupation disrupted historic national territorial boundaries.

In **Falklands/Malvinas**, the UK cites the 2013 referendum (99.8% voting to remain British), while Argentina asserts historical continuity under the *uti possidetis juris* principle.



Figure 11: *Contested continental shelf claims and sovereign baseline charts under UNCLOS Article 76.*

6.2 Western Sahara & The MINURSO Deadlock

Western Sahara remains Africa's last colony. Following Spain's withdrawal in 1975, the territory became locked in military conflict between Morocco and the Polisario Front. In 1991, the Security Council established **MINURSO** to organize a self-determination referendum. Over three decades later, disagreements over voter registration criteria have prevented the referendum from ever occurring.

PART VI: INTERNATIONAL JURISPRUDENCE

The 2019 ICJ Chagos Advisory Opinion & De-Listing

6.3 The 2019 ICJ Chagos Ruling: Erga Omnes Obligations

On 25 February 2019, the International Court of Justice delivered a landmark Advisory Opinion on the *Legal Consequences of the Separation of the Chagos Archipelago from Mauritius in 1965*. The Court ruled by 13 votes to 1 that the decolonization of Mauritius was not lawfully completed because the administering power dismembered the territory prior to granting independence.

Crucially, the ICJ affirmed that **the right to self-determination has the character of an erga omnes obligation**—creating legal duties for *all* States to cooperate with the UN in bringing decolonization to completion.



Figure 12: *International Court of Justice legal precedents confirming that decolonization creates binding erga omnes obligations.*

6.4 The De-Listing Dilemma & Premature Removals

The Danger of De Facto Annexation: Administering powers frequently request that territories be de-listed following domestic constitutional reclassifications (e.g., French overseas collectivities or British overseas territories). The General Assembly has consistently resisted premature de-listing without verified, internationally supervised plebiscites.

PART VII: LEGAL DIMENSIONS

The Right to Self-Determination (RTSD)

7.1 Legal Dimensions under Customary International Law

The Right to Self-Determination is enshrined in **Article 1(2) of the UN Charter** and codified as Common Article 1 of the **International Covenant on Civil and Political Rights (ICCPR)** and the **International Covenant on Economic, Social and Cultural Rights (ICESCR)**: *"All peoples have the right of self-determination. By virtue of that right they freely determine their political status and freely pursue their economic, social and cultural development."*

RTSD is legally recognized as a **jus cogens norm**—a fundamental principle of international law accepted by the international community of states as a norm from which no derogation is permitted.

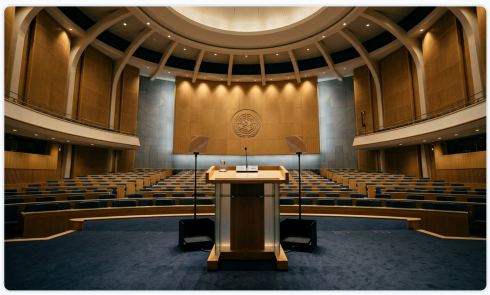


Figure 13: *Diplomatic rostrum address debating the legal scope and non-derogable status of self-determination.*

7.2 The Three Legitimate Outcomes (Resolution 1541)

Outcome	Constitutional Mechanism	Core Legal Requirements
1. Independence	Full sovereign statehood and UN membership.	Unfettered sovereignty; complete transfer of legislative and executive powers.
2. Free Association	Internal autonomy under bilateral compact.	Right to unilaterally modify constitutional status and opt for full independence at any time.
3. Full Integration	Equal citizenship within administering State.	Complete political equality, universal franchise, and full representation in national parliament.

PART VII: GENUINE PLEBISCITES

Mechanics of Genuine Plebiscites & Maritime Rights

7.3 Franchise Integrity: The Nouméa Accord Case Study

A referendum is legally valid only if the electoral roll represents the genuine *"people"* entitled to self-determination. In **New Caledonia**, the 1998 Nouméa Accord established a restricted voting roll requiring 20 years of continuous residence to protect indigenous Kanak representation.

Following two narrow "No" votes in 2018 and 2020, France conducted a third referendum in December 2021 amidst the COVID-19 pandemic. Indigenous Kanak leaders boycotted the poll, resulting in a 96% "No" vote with 56% abstention. Pro-independence groups and regional Pacific leaders reject the legitimacy of the outcome.



Figure 14: *Neutral multilateral working group auditing voter eligibility rolls prior to territorial referenda.*

7.4 The Requirement for Neutral UN Supervision

Mandatory Evidentiary Standard: For a plebiscite to be recognized by the General Assembly as extinguishing non-self-governing status, it must occur under direct UN observation, free from economic coercion, metropolitan military intimidation, or biased media dissemination.

PART VIII: FISCAL SOVEREIGNTY

Economic Dependency & Resource Sovereignty

8.1 Resource Concessions & The Fiscal Lifeline Trap

Most NSGTs are caught in a structural **economic dependency trap**. Administering powers provide substantial annual budgetary subsidies (often covering 30% to 60% of territorial public spending). In exchange, administering powers retain licensing rights over lucrative offshore fishery concessions, subsea seabed mineral exploration, and maritime shipping corridors.

In **New Caledonia**, the territory holds roughly **10% of the world's nickel reserves**—an indispensable critical mineral for electric vehicle batteries. Yet downstream refining and revenue repatriation remain heavily controlled by metropolitan conglomerates.

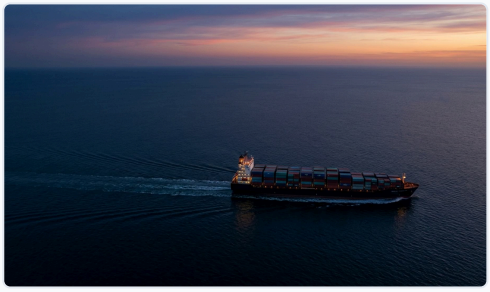


Figure 15: *Offshore industrial fisheries and mineral extraction operations conducted within island territorial EEZs.*

8.2 Resolution 1803 (XVII): Permanent Sovereignty Over Resources

Inalienable Resource Rights: General Assembly Resolution 1803 (XVII) explicitly mandates that the right of peoples to permanent sovereignty over their natural wealth and resources must be exercised in the interest of their national development and of the well-being of the people of the State concerned. Exploitation of territorial resources without local revenue repatriation constitutes a direct violation of UN resolutions.

PART IX: EXISTENTIAL THREATS

Environmental Vulnerability & Climate Justice

9.1 Sea-Level Rise & Archipelagic Fragility

The majority of NSGTs are Small Island Developing States (SIDS) or low-lying coral atolls. In territories like **Tokelau**, the highest elevation is less than five meters above sea level. Accelerating sea-level rise, ocean acidification, and intensified tropical cyclones pose an existential threat to territorial survival.

Saltwater intrusion has begun contaminating delicate freshwater lenses, destroying traditional taro cultivation, and forcing coastal community relocation.

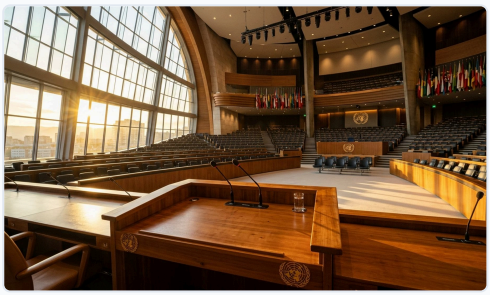


Figure 16: *Low-lying archipelagos confronting accelerated sea-level rise and saltwater intrusion into freshwater tables.*

9.2 The Non-Sovereign Climate Financing Void

The Structural Financing Dilemma:

- **Ineligibility for UN Funds:** Because NSGTs lack sovereign statehood, they are legally excluded from directly accessing the **Green Climate Fund (GCF)**, the **Loss and Damage Fund**, or bilateral multilateral climate finance facilities.
- **Metropolitan Dependency:** Territories must rely entirely on metropolitan appropriations, which frequently divert disaster recovery funds to geopolitical priorities.

PART X: ACTIONABLE FRAMEWORKS

Framework for Multilateral Solutions & Compromise

10.1 Four Operative Pathways for Draft Resolutions

To overcome 30 years of stagnation, delegates in the General Assembly must move beyond uncompromising rhetoric and formulate pragmatic, legally sound multilateral mechanisms:

1. Sovereign Resource Escrow Accounts: Mandating that 30% to 50% of offshore fisheries and seabed mineral revenues be placed in UN-audited local escrow trust funds.

2. Modernized Visiting Missions: Conditioning international development aid and trade access on administering power consent to biennial C-24 visiting missions.



Figure 17: *Delegates collaborating during an unmoderated caucus on compromise language for draft resolution clauses.*

3. Bilateral De-escalation Compacts

Establishing joint sovereignty transition boards with phased sovereignty transfer timelines (e.g. 10-year roadmaps modeled after the Bougainville Peace Agreement).

4. Direct Climate Adaptation Windows

Authorizing direct sub-sovereign access windows to the UN Loss and Damage Fund for environmentally vulnerable small island NSGTs.

PART XI: DELEGATE RESEARCH PROMPTS

Ten Critical Questions to Consider

Delegates are required to address these substantive questions within their working papers and draft resolution operative clauses:

Q1. Balancing Territorial Integrity & Self-Determination: How can the UN reconcile historical territorial claims with the democratic right to self-determination?

Q2. Verification of Article 73(e) Compliance: What legal enforcement mechanisms can compel administering powers to submit unredacted economic reports?

Q3. Criteria for Genuine Plebiscites: What residency duration (e.g., 10 vs 20 years) is necessary to ensure indigenous franchise integrity?

Q4. Direct Climate Adaptation Financing: Through what legal mechanism can non-sovereign territories access the Loss and Damage Fund?

Q5. Demilitarization of Forward Bases: Can the General Assembly mandate inspections of military bases in Guam or Diego Garcia?

Q6. Sovereign Resource Wealth Escrows: How can offshore fishery royalties be protected from metropolitan repatriation?

Q7. Free Association Oversight: What safeguards ensure Free Association compacts can be unilaterally modified by the territory?

Q8. ICJ Advisory Opinion Enforcement: How can the General Assembly mobilize diplomatic pressure based on the 2019 Chagos ruling?

Q9. Redressing Indigenous Dispossession: What reparative frameworks can restore ancestral lands confiscated for naval use?

Q10. Ending the Decolonization Stagnation: What binding benchmark targets can make the Fourth Decade (2021–2030) successful?

PART XII: CLOSING DIRECTIVE

Treaties, Bibliography & Secretariat Verification

Authoritative Treaties & General Assembly Resolutions

Citation	Year / Body	Legal Substance & Relevance
UN Charter Chapter XI	1945 · San Francisco	Declaration Regarding Non-Self-Governing Territories (Articles 73–74).
GA Resolution 1514 (XV)	1960 · UNGA Plenary	Declaration on the Granting of Independence to Colonial Countries and Peoples.
GA Resolution 1541 (XV)	1960 · UNGA Plenary	Principles defining Free Association, Independence, and Full Integration.
GA Resolution 75/123	2020 · UNGA Plenary	Fourth International Decade for the Eradication of Colonialism (2021–2030).
ICJ Chagos Advisory Op.	2019 · ICJ The Hague	Affirms erga omnes character of self-determination and territorial integrity.

SECRETARIAT DIRECTIVE TO DELEGATES:
The General Assembly at GTMUN '26 demands high-level diplomatic negotiation, strict procedural adherence to UN rules of evidence, and courageous compromise. Formulate operative clauses that bridge sovereign disputes while defending the inalienable rights of territorial populations.

Jagrit Arora
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Mrigank Choudhary
DIRECTOR-GENERAL · GTMUN '26